

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Claudia Quigley	Team: Team # 7	CCRB Case #: 200803136	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 03/01/2008 2:00 AM	Location of Incident: § 87(2)(b)		Precinct: 47	18 Mo. SOL 9/1/2009	EO SOL 9/1/2009
Date/Time CV Reported Mon, 03/03/2008 4:28 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/03/2008 4:28 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Asa Barnes	20209	936173	047 PCT		
2. SGT Amanjeet Sandhu	04523	931138	047 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Kely Vasquez	09242	939640	047 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A.SGT Amanjeet Sandhu	Abuse: Sgt. Amanjeet Sandhu authorized the entry of § 87(2)(b) in the Bronx.				
B.POM Asa Barnes	Force: PO Asa Barnes used physical force against § 87(2)(b)				

Synopsis

§ 87(2)(b) called the CCRB on March 3, 2008 to file a complaint. According to § 87(2)(b) on March 1, 2008 at approximately 2:00am, police forcefully entered her house located at § 87(2)(b) in the Bronx under the supervision of Sgt. Amanjeet Sandhu (Allegation A). The officers accused her of illegally evicting § 87(2)(b) and PO Asa Barnes allegedly pushed her, grabbed her arm, and slammed her face against a TV (Allegation B). § 87(2)(b) was arrested, transported to the 47th Precinct stationhouse, and charged with § 87(2)(b).

§ 87(2)(g)

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b)'s Statement to § 87(2)(b) Medical Personnel.

On her visit to the hospital on § 87(2)(b) § 87(2)(b) complained of back pain (encl. 19F). § 87(2)(b) returned to the hospital on § 87(2)(b) complaining of neck pain and a cough (encl. 19I). § 87(2)(b) stated that she was assaulted by the NYPD, that she was hit in the jaw, and that her arm was twisted behind her (encl. 19J).

§ 87(2)(b) was interviewed at the CCRB on December 29, 2008 (encl. 7B).

§ 87(2)(b) is 5'2" tall and weighs 138lbs. She has black hair and brown eyes. At the time of the incident § 87(2)(b) was living at § 87(2)(b) in the Bronx with her two children, § 87(2)(b) and § 87(2)(b). § 87(2)(b) stated that the incident began at 3:00am, but all evidence indicates that the starting time was 2:00am.

§ 87(2)(b)'s cousin, § 87(2)(b) gave her some of his belongings to hold for him in the den. § 87(2)(b) was not living at her house. On February 29, 2008 § 87(2)(b) and § 87(2)(b) got into an argument and she told him to leave. A few hours after the argument § 87(2)(b) returned with the police. The police were asking for his belongings because § 87(2)(b) told them he lived at the location. § 87(2)(b) informed the officers that § 87(2)(b) could remove his items from the den. The police and § 87(2)(b) left. § 87(2)(b) never collected his belongings and he returned with the police a few hours later, around midnight, on March 1, 2008. § 87(2)(b) provided the same explanation as before and the police told § 87(2)(b) to get his stuff from the den and that he did not need to go in the house at all. § 87(2)(b) refused and the officers told him to leave the premises.

§ 87(2)(b) and her two children went back to sleep. At approximately 2:00am, § 87(2)(b) heard her main door burst open. She assumed there were robbers at her house and called 911. She exited her room with the phone in her hand and went down the steps towards the first floor. Her children were following behind. As she descended the steps § 87(2)(b) saw about four to five officers entering her house. § 87(2)(b) was also present. The officers asked for the landlord and she told them that it was her apartment and the landlord was not there. An officer § 87(2)(b) identified as PO Asa Barnes from his nameplate came forward and pushed § 87(2)(b) on her chest. She stumbled back and hit the back of her head against the wall. He then took her arm, slammed her face into the TV, and twisted her arm up her back. The left side of § 87(2)(b)'s face hit the TV. § 87(2)(b) did not know why PO Barnes reacted in this manner. PO Barnes was short and had reddish blond hair.

§ 87(2)(b) stated, "My god you are going to kill me, I am peeing on myself, what is going on, I am scared, can you tell me what is going on, what did I do?" PO Barnes responded, "I don't care, you are going to jail," and handcuffed § 87(2)(b). § 87(2)(b) asked him for what and he ignored her. PO Barnes saw § 87(2)(b) talking on the phone and he grabbed her phone and threw it, which caused it to crack on the side. § 87(2)(b) stated that a supervisor was at the scene. She identified him as Sgt. Amanjeet Sandhu from his nameplate and described him as a tall Indian guy. § 87(2)(b) asked, "What is going on," and remembered hearing Sgt. Sandhu said, "Oh shit." § 87(2)(b) asked PO Barnes's partner, whom she identified as PO Kely Vasquez from his nameplate, what did she do, but none of the officers told her. § 87(2)(b) told the officers that she needed her shoes and Sgt. Sandhu allowed § 87(2)(b) to get

§ 87(2)(b) her shoes and her coat. § 87(2)(b) was then escorted out of the house, placed in a police car, and transported to the stationhouse where she was charged with illegal eviction. § 87(2)(b) stated when she returned home she was feeling sick and she went to the § 87(2)(b) in the Bronx. § 87(2)(b) stated that she received a contusion and a sprained her neck as a result of the incident.

Results of Investigation

Witness Statements

§ 87(2)(b) was interviewed at the CCRB on December 29, 2008 (encl. 8B).

§ 87(2)(b) is § 87(2)(b) s § 87(2)(b) son.

§ 87(2)(b) stated that on March 1, 2008 at approximately 12:00am the police came to his house to talk to his mother, § 87(2)(b) to ask her if § 87(2)(b) was a resident at her house. § 87(2)(b) is a friend of his mother's. § 87(2)(b) told the police that § 87(2)(b) did not live at the house and the police left. § 87(2)(b) and his sister, § 87(2)(b) were sleeping in their mother's bedroom with their mother, when at approximately 2:00am, they heard somebody break into the house. § 87(2)(b) got up and went downstairs and § 87(2)(b) followed her. § 87(2)(b) followed her brother a few seconds later.

According to § 87(2)(b) he observed a Hispanic male officer, identified as PO Barnes, grab his mother's arm and slammed her into the TV. § 87(2)(b) s face hit the TV and her phone dropped to the floor. PO Barnes then handcuffed her and sat her on a couch. PO Barnes told her she was going to jail and there was nothing she could do about it. § 87(2)(b) did not do anything to provoke this reaction from PO Barnes. § 87(2)(b) was not bleeding but she sustained a big bruise on the side of her face. § 87(2)(b) did not remember which side. A few seconds later about four officers entered the apartment with § 87(2)(b). The officers asked § 87(2)(b) if § 87(2)(b) was a resident at the house and if his belongings were in the house. § 87(2)(b) told the officers that his belongings were in the back of the house, in the den, and the officers went to get his stuff. § 87(2)(b) pointed to the things that were his and the officers took the items. The officers escorted his mother out of the apartment, after letting her get her shoes, and into a patrol car. § 87(2)(b) stated that his mother urinated on herself sometime during the physical interaction with PO Barnes. One of the officers called § 87(2)(b) father, § 87(2)(b) and waited to leave until the father came to pick up § 87(2)(b) and his sister.

§ 87(2)(b) was interviewed at the CCRB on December 29, 2008 (encl. 9B).

§ 87(2)(b) is § 87(2)(b) s § 87(2)(b) daughter.

According to § 87(2)(b) on March 1, 2008 she, her brother, and their mother were sleeping in their mother's bedroom when at approximately 2:00am, § 87(2)(b) heard a loud thump. § 87(2)(b) was awake and on the phone so she was the first person to leave the room and walk downstairs to see what was going on. § 87(2)(b) got up and followed his mother. § 87(2)(b) followed her brother about ten to fifteen seconds later.

When § 87(2)(b) arrived downstairs she observed four to five uniformed police officers standing in the living room. One of the officers, identified as PO Barnes, grabbed her mother by the arm, handcuffed her, and pushed her against the wall. He told her she was being arrested. PO Barnes was a male Hispanic, about 5'8" tall, and muscular. Her mother's cousins, § 87(2)(b) and § 87(2)(b) were standing outside the door. § 87(2)(b) stated that § 87(2)(b) and § 87(2)(b) are friends of the family but she did not know their last names. Her mother was asking what did she do to the officers but they did not respond. § 87(2)(b) explained that § 87(2)(b) and § 87(2)(b) were at the house because they came to pick up their belongings. § 87(2)(b) did not know if § 87(2)(b) and § 87(2)(b) came with the officers.

A tall Indian officer, identified as Sgt. Sandhu, asked § 87(2)(b) if her mother was taking any medicine. § 87(2)(b) did not know why she asked that question. He then told her to get her mother's shoes and ID. § 87(2)(b) stated that her mother was upset about the incident but was not screaming or physically assaulting the officers. § 87(2)(b) got her mother's shoes and the officer escorted her outside. The officers then called her father to come get her and her brother.

§ 87(2)(b) s NYPD Domestic Incident Report Narrative, March 1, 2008 (encl. 18B).

§ 87(2)(b) reported that his cousin, § 87(2)(b) locked him and his son, § 87(2)(b) out of the premises of § 87(2)(b) due to some emotional disturbances she was experiencing.

§ 87(2)(b) was interviewed over the phone on March 2, 2009 (encl. 10A).

§ 87(2)(b) is § 87(2)(b)'s cousin.

§ 87(2)(b) stated that he had been living at § 87(2)(b) in the Bronx for over three months with his son, § 87(2)(b). He was paying his cousin, § 87(2)(b) rent. On the night of February 28, 2008, § 87(2)(b) and § 87(2)(b) got into an argument because § 87(2)(b) was moving with his son to their own place. § 87(2)(b) was upset because she was losing the income and she wanted § 87(2)(b) to give her additional money. § 87(2)(b) and his son went to bed and § 87(2)(b) called the police. The officers arrived and § 87(2)(b) showed them receipts proving that he had been paying rent and had been living at the house for some time. The officers informed § 87(2)(b) that she did not have the authority to remove § 87(2)(b) and left the premises.

§ 87(2)(b) left the house the next day and when he came back on February 29, 2008 he could not come into the house because his key did not work. He went to get the landlord to open the door but the landlord's master key did not work either. § 87(2)(b) went to the police to complain about being illegally evicted. When he arrived with the police, § 87(2)(b) refused to open the door. The officers tried to talk her into cooperating for three hours but § 87(2)(b) refused and instead, barricaded the door with her furniture, her couch, and TV. Eventually the police forced their way into the house and arrested § 87(2)(b). § 87(2)(b) was sitting in the patrol car when the officers entered the house. He observed as they escorted § 87(2)(b) out and did not see any blood or injuries on § 87(2)(b). He only observed that she was incoherent and deranged, telling the officers that § 87(2)(b) did not live at the house.

Officer Identification

PO Asa Barnes, Sgt. Amanjeet Sandhu, and PO Kely Vasquez were identified by § 87(2)(b) by last name from their nameplates. On March 1, 2008 PO Barnes and PO Vasquez worked 2315 x 0750 hours. They were assigned to sectors H, I, and J. They were assigned to a marked car and dressed in uniform. Sgt. Sandhu was their supervisor.

Officers' Statements

Sgt. Amanjeet Sandhu's Memo Book Entry March 1, 2008 (encl. 13A-C).

Sgt. Sandhu noted in his memo book that at 1:15am he responded to § 87(2)(b) and arrested one person for § 87(2)(b).

Sgt. Amanjeet Sandhu was interviewed at the CCRB on March 3, 2009 (encl. 14B).

According to Sgt. Sandhu, on March 1, 2008 at approximately 1:00am, an officer, identified as PO Asa Barnes, called him to the scene at § 87(2)(b) in the Bronx and informed him that a female, identified as § 87(2)(b) had illegally evicted § 87(2)(b). Sgt. Sandhu responded to the scene where § 87(2)(b) was waiting along with PO Barnes and PO Vasquez. § 87(2)(b) informed Sgt. Sandhu that he had been living at the house for the last six months and § 87(2)(b) was refusing to let him back in the house. The officers knocked on the door for a while and eventually § 87(2)(b) looked out through the window. Sgt. Sandhu identified himself and asked § 87(2)(b) to let § 87(2)(b) into the house. § 87(2)(b) refused, stating that it was her house and that if § 87(2)(b) had been living there, she did not care because she did not want him there any longer.

Sgt. Sandhu explained to § 87(2)(b) that she was in violation of a city code and she had to let § 87(2)(b) in the house, but § 87(2)(b) refused and moved away from the window. Sgt. Sandhu tried knocking on the door again and about twenty minutes later she came back out and Sgt. Sandhu tried to reason with her, informing her that she had to let § 87(2)(b) in the house and it was illegal for her to change the lock. He informed her that her actions constitute an illegal eviction and she was going to be arrested. § 87(2)(b) responded that it was her house and she was not going to let anybody in. At this time, Sgt. Sandhu requested ESU to come to the scene to enter the house. ESU responded shortly after and forced their way into the front door. The ESU officers entered the house, followed by Sgt. Sandhu and his officers. § 87(2)(b) had barricaded the door with multiple pieces of furniture. When ESU was able to get past the door and the barricade, Sgt. Sandhu and his officers entered the house and arrested § 87(2)(b) for § 87(2)(b). Sgt. Sandhu stated that upon entering the house, he observed § 87(2)(b) standing in the middle of the living room and he instructed his officers to handcuff her. One of the officers, PO Barnes or his

partner, PO Kelvy Vasquez, he did not remember who, proceeded to grab § 87(2)(b) handcuffed her, and she was escorted out shortly after. The officers then allowed § 87(2)(b) into the house.

Sgt. Sandhu stated that when the officers finish handcuffing her, two teenagers came down the stairs. They were § 87(2)(b)'s children. After § 87(2)(b) was escorted out, the teenager's father came over to stay with them. Sgt. Sandhu stated that he did not use physical force against § 87(2)(b) and did not see any officers hitting § 87(2)(b) against a wall or a TV. Sgt. Sandhu stated that he did not curse while interacting with § 87(2)(b).

PO Asa Barnes' Memo Book Entry March 1, 2008 (encl. 11A-C).

He noted in his memo book that at 11:45pm he was assigned a job at § 87(2)(b). At 2:01am § 87(2)(b) was arrested by PO Vasquez.

PO Asa Barnes was interviewed at the CCRB on January 30, 2009 (encl. 12B).

According to PO Barnes, on March 1, 2008 a male, identified by the investigation as § 87(2)(b) came to the 47th Precinct stationhouse complaining that he was unlawfully evicted from § 87(2)(b) in the Bronx. His landlord, identified as § 87(2)(b) changed the locks to the door. § 87(2)(b) had documentation, such as bills and an ID as proof that he had lived at the location for numerous months. PO Barnes and PO Vasquez were assigned the job at approximately 11:45pm. They drove to the stationhouse where they met with § 87(2)(b) and then went to the location. § 87(2)(b) refused to open the door for the officers for over an hour. At some point, while the officers were trying to gain her compliance, § 87(2)(b) told them that she was not going to open the door. § 87(2)(b) had her cell phone and he called her numerous times but § 87(2)(b) refused to answer the phone.

Given § 87(2)(b)'s lack of cooperation, a supervisor responded to the location. Sgt. Amanjeet Sandhu arrived and determined that ESU needed to be called. When ESU arrived, they also attempted to get § 87(2)(b) to open the door but there was no answer. Therefore, ESU forced the door open. The door had been bordered up with chairs, desk, and other items. After opening the door, ESU entered the house, followed by PO Barnes, PO Vasquez, and Sgt. Sandhu. PO Barnes remembered that § 87(2)(b) was in the house, but he could not recall exactly where she was or what she was doing. He stated that there may have been a child in the house as well. § 87(2)(b) was aggravated, irritated, and mad. She was screaming and cursing at the officers, but PO Barnes did not recall exactly what she said.

PO Barnes stated that § 87(2)(b) was then arrested, but he did not recall who grabbed § 87(2)(b) and placed her in handcuffs. She was then escorted out and transported to the 47th Precinct to be processed. PO Barnes did not recall by whom. PO Barnes stated that he did not grab § 87(2)(b) and slam her against a wall or a TV and did not see the other officers doing this. PO Barnes did not recall any injuries on § 87(2)(b) or her complaining about urinating on herself and did not throw her phone down.

PO Kelvy Vasquez's Arrest, Complaint, and NYPD Domestic Incident Report March 1, 2008 (encl. 16, 17, 18).

§ 87(2)(a) 160.50

PO Kelvy Vasquez was interviewed at the CCRB on May 22, 2009 (encl. 15B).

PO Vasquez did not have his memo book with him.

According to PO Vasquez, on February 29, 2008 at approximately 11:45pm he and PO Barnes responded to § 87(2)(b) in the Bronx to investigate an illegal eviction. The victim, § 87(2)(b) called the police to complain that he was not been allowed inside his home. When the officers arrived at the location, they spoke to § 87(2)(b) who provided mail and bills with the address. The officers spoke to a female identified as § 87(2)(b). The officers informed § 87(2)(b) that she could not put § 87(2)(b) out on the street and have to resolve the problems through landlord / tenant court. PO Vasquez did not recall if § 87(2)(b) opened the door for the officers if they talked to her through the door.

§ 87(2)(b) refused to cooperate and the officers called Sgt. Amanjeet Sandhu to the location. § 87(2)(b) was eventually arrested. PO Vasquez did not recall who else responded to the location and did not remember if ESU responded. PO Vasquez did not recall how the officers gain entry into the house or if the way inside the house was barricaded in any way. PO Vasquez did not recall what happened once they entered the house and did not recall who handcuffed § 87(2)(b). He stated that § 87(2)(b) was calm and complied with the arrest. There were teenagers in the house but PO Barnes did not interact with them. PO Vasquez did not see any injuries on § 87(2)(b) and did not recall any thing about § 87(2)(b) urinating at the time of arrest. PO Vasquez did not push § 87(2)(b) against a wall or a TV, did not throw her phone down, and did not use any discourtesies when addressing the civilians and did not see or hear any officers doing so.

Medical Records

§ 87(2)(b) arrived at § 87(2)(b) complaining of back pain (encl. 19F). An x-ray of the left shoulder showed that the bones were normal, the joint space was well preserved, and the soft tissues were unremarkable. § 87(2)(b) was prescribed Tylenol for the pain and her arm was placed on a sling. She was advice not to leave the sling on all day (encl. 19G). § 87(2)(b) was discharged at § 87(2)(b) (encl. 19F). § 87(2)(b) returned to the hospital on § 87(2)(b) complaining of neck pain and cough (encl. 19I). Upon arrival, § 87(2)(b) was having difficulty moving her neck freely and was wearing a sling. The general appearance showed no acute distress or obvious discomfort (encl. 19J). The neck showed supple and mild tenderness at C5 and C7. An x-ray of the cervical spine showed that the bones were normal, the intervertebral spaces were well preserved, and the soft tissues were unremarkable.

NYPD Documents

- Roll Call (encl. 20A-B) – Sgt. Sandhu, PO Barnes, and PO Vasquez were present for duty on March 1, 2008 for tour 1.
- Command Log (encl. 21A) – § 87(2)(b) was logged in at 2:20am and her condition was apparently normal.
- ESU Report (encl. 22A) –According to the report, on March 1, 2008 ESU received a request at 1:20am to respond to § 87(2)(b) in the Bronx to gain entry for person locked out by another. The job was completed at 2:15am
- SPRINT (encl. 23A-B) – According to the SPRINT, officers from the 47th Precinct requested a sergeant to the scene to verify an arrest at 1:10am. The sergeant arrived at 1:11am and requested ESU to the scene at 1:16am to take down a door. ESU arrived at 1:42am. § 87(2)(b) called the police at 1:43am complaining that someone was trying to break her door. ESU gained access to the house and § 87(2)(b) was arrested. The operation in regards to eviction was completed at 2:16am.

Case Disposition

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civil Case Records

§ 87(2)(b) filed a claim against the City of New York on December 29, 2008, alleging that the police broke into her house, assaulted her, arrested her, and charged her with baseless criminal offenses. As a result she suffered serious mental and physical injuries. The total amount claimed is to be decided at or before the trial. The case is still active (encl. 24A-L).

Complainant/Victim Criminal Conviction History

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

This is § 87(2)(b)'s first complaint. § 87(2)(b) filed a second complaint at the CCRB § 87(2)(b)

Police Officer CCRB History

Sgt. Sandhu and PO Barnes do not have any substantiated allegations (encl. 3A, 4A).

Conclusions and Recommendations

Identification of Subject Officers

§ 87(2)(b) identified PO Barnes by name and indicated that he was the officer that she physically interacted with and Sgt. Sandhu as the supervisor. Both officers were present at the location. PO Barnes had blond hair and brown eyes as described by the civilians, while PO Vasquez and Sgt. Sandhu both have black hair. Sgt. Sandhu's ethnicity is Indian, while PO Vasquez is Hispanic and PO Barnes is white.

Undisputed Facts and Disputed Facts

It is not in dispute that the police responded to § 87(2)(b)'s house because of an allegation of an illegal eviction.

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(g)

According to § 87(2)(b) when the police entered her house, PO Barnes pushed her, twisted her arm, and slammed her face against the TV. § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

Allegation A: Abuse of Authority - Sgt. Amanjeet Sandhu authorized the entry of § 87(2)(b) in the Bronx.

The CCRB determined that Sgt. Sandhu was the patrol supervisor and he requested ESU to the scene to enter § 87(2)(b). § 87(2)(b) alleged that the officers had no authority to enter her home. The officers interviewed stated that § 87(2)(b) called the police because § 87(2)(b) had changed the locks on the home he had been living in for a few months, preventing access to his current home and his belongings. § 87(2)(g)

§ 87(2)(g) New York City Administrative Code 26-521 Illegal Eviction: "It should be unlawful for any person to evict or attempt to evict an occupant of a dwelling who has lawfully occupies the dwelling unit for thirty consecutive days" (encl. 1A). The Patrol Guide 214-12 indicates that officers should, "effect an arrest where the violator refuses to permit occupant to re-enter or who through physical obstruction prevents the occupant from re-entering" (encl. 2A-C). § 87(2)(g)

Allegation B: Force - PO Asa Barnes used physical force against § 87(2)(b)

§ 87(2)(b) alleged that when the officers entered the apartment, PO Barnes pushed her on the chest, twisted her arm, and slammed her face against the TV. § 87(2)(g)
The officers interviewed did not recall who arrested § 87(2)(b) or the method used, however, the arrest report stated that no physical force was used. § 87(2)(g)

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Investigator: _____ **Date:** _____

Supervisor: _____ **Date:** _____

Reviewed by: _____ **Date:** _____

Reviewed by: _____ **Date:** _____
